7/9/2025 - Public Statement Hearing - 25-E-0072, 25-G-0073

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 25-E-0072 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service.

CASE 25-G-0073 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.

PUBLIC STATEMENT HEARING

DATE: JULY 9, 2025

LOCATION: Brooklyn Borough Hall
209 Joralemon Street
Brooklyn, New York 10201

BEFORE: ALJ TARA KERSEY
ALJ DAKIN LECAKES

Reported by Ildiko Nyari

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(The hearing commenced at 6:00 p.m.)

A.L.J. KERSEY: We are on the record. I call case 25-E-0072, proceeding on motion of the Commission as to the rate charges, rules, and regulations of Consolidated Edison Company of New York, Inc. for electric service; and case 25-G-0073, proceeding on the motion of the Commission as to the rates, charges, rules, and regulations of Consolidated Edison Company of New York, Inc. for gas service.

Good evening. My name is Tara Kersey, and with me is Chief administrative Judge Dakin Lecakes. I, along with Judge James Costello and Judge Nicholas Planty, have been assigned for the Department of Public Service to these rate cases.

Chief Administrative Judge Lecakes is with me today to preside over this public statement hearing held on behalf of the New York State Public Commission -- the Public Service Commission regarding the proposed changes in the electric and gas delivery rates and practices of the Consolidated Edison Company of New York.

Con Edison filed amendments to its

electric and gas tariff schedules on January 31st, 2025, proposing to increase its annual electric and gas delivery revenues for the 12-month period ending December 31st, 2026.

As of its April 10th, 2025, updated testimony, Con Edison proposes to increase its electric delivery revenues by approximately $1.6 billion and its natural gas delivery revenues by approximately $349 million. The actual bill impacts of these proposed changes on any particular customer class will vary based upon revenue allocation and rate design.

By letter dated June 24th, 2025, Con Edison filed a notice of impending settlement negotiations involving all participating parties. If settlement negotiations are successful, the parties to the settlement would file a joint proposal to be considered by the Commission.

Under New York State law, the Public Service Commission must consider the utility's proposals and may adopt or reject them in whole or in part, or modify it. At this time, the Commission must decide these cases by December 30th, 2025.

However, that date may be subject to further extension.

Regardless of how these cases proceed, the Public Service Commission will make the final decision regarding the company's terms and conditions for providing electric and gas service. This hearing is being held, so you can provide your comments on Con Edison's proposals for the Commission's consideration.

In making its decision, the Commission will consider the evidentiary record in these cases and the comments made at this hearing. The Public Service Commission has seven members: the chairperson, Rory Christian, and six commissioners James Alesi, David Valesky, John Maggiore, Uchenna Bright, Denise Sheehan, and Radina Valova.

Statements you make tonight will become part of the record. The court reporter here will prepare a transcript of the hearing, which will be included in your -- in the record of these proceedings so that your comments can be considered by all members of the Commission. When it's ready, the transcript will be available for public view on

the Department of Public Service's website.

Today's hearing is not a question-and-answer session. We are here only to listen to your comments. However, if you do have any questions or concerns related to your service, Con Edison has representatives here, and they have materials that provide a dedicated phone number and email for customers to get assistance related to specific customer service and billing inquiries. You can obtain that material out by where you checked in.

Also, the Department of Public Service has consumer services representatives here, and they can assist you with questions or complaints regarding your utility service as well.

If you do not wish to speak at today's hearing, but you would like your views included in the record, there are other ways to comment. You can submit comments on the Department's website, by regular mail, or by telephone. Information regarding these alternative methods is available from the Department's Office of Consumer Services staff, and they are seated at the table where you came in.

Regardless of how the comments are

submitted, they will be given equal consideration. According to the Secretary's notice for this event, comments must be received by November 21st, 2025, to ensure the Commission is able to consider them prior to making its final decision.

If you would like to make a statement here today and you have not already done so, please fill out a registration card. The registration cards are available at the table with our outreach staff. I will call speakers up one by one, using the cards in the order in which they were received. Please speak slowly and clearly so that the court reporter can accurately capture your statement for the record.

Our first speaker is Sophia Harrington. And you can just come up to the podium here. Okay. Great. Thank you. Yes. Right there. Thank you.

MS. HARRINGTON: Hi.

A.L.J. KERSEY: Good evening.

MS. HARRINGTON: Thank you for being here and listening to us. I have this -- I'm not well-prepared because I came in, like, a half hour, so I'll do my best. But most of the numbers are in

this document, which we all have, but I just wanted to emphasize them. As a New York City resident, we live in the most expensive city in the country as of now and one of the districts with the highest utility -- utility rates in the country, largely due to controlled -- but monopoly. And it's frankly absurd to propose double digit hikes in the coming year.

Working people in this city are struggling more than ever, and this move would make it increasingly unlivable for them. I'm a public school teacher, for example, and each year the city becomes more and more economically inaccessible. I can't even fathom what it's like for someone who makes less than me or makes minimum wage.

There are aspects of this proposal that I found uniquely outrageous. I'm going to repeat some of the figures again that may have already been stated for emphasis.

First, according to this proposal, tax ratepayers, aka us, will foot the bill for property taxes on new and existing utility equipment. That is 27 percent of the proposed electric hike and 14

percent of the gas hikes. I know that there is maintenance that needs to be done, but putting that onto us at such high rates is unfathomable.

Secondly, Con Ed is an investor-owned company that has a controlled monopoly over the utility services in New York City. It will increase its return on equity from 9.5 -- 9.25 percent, that's what it is currently, to ten percent. That increase is, in my opinion, unnecessary. Not only that, but it is openly seeking, as we all know, to increase its yearly revenue by 1.6 billion.

Lastly, it is worth noting that Con Ed CEO Tim Cawley raked in a combined income of 15 million last year. Even Kathy Hochul publicly chastised him for this while so many regular -- because so many regular New Yorkers are struggling to pay their current utilities, amongst other things and other bills.

So my message to those here on the Commission and to Governor Hochul is if you're serious about representing New Yorkers, hard-working New Yorkers and city residents, aka your job, while simultaneously improving the grid, I know that

there's a CLCPA -- the Climate Leadership and Community Protection Act which recently got passed. I know that that increases costs, so I'm not unaware of that. But it's, I feel, your duty as elected officials to regulate the cost burden of this in a more realistic and humane way and not by shirking the cost onto already overburdened New Yorkers. Thank you.

A.L.J. KERSEY: Thank you. Thank you for your comments. Our next speaker is Stephanie Fox.

MS. FOX: Hello. I'm Stephanie Fox, Strategic Organizer for Climate and Environmental Justice at the New York City Comptroller's Office. Thank you to the Department of Public Services for hearing my testimony today.

The Office of the New York City Comptroller takes a long-term view of the city's greatest risks, including those posed by climate change, and is committed to a just transition from fossil fuels. We stand up for New Yorkers most vulnerable to climate impacts and advance economic policies that are equitable and just.

Con Ed's proposed rate hikes would severely impact residential customers, especially low-income households. Utility debt has nearly doubled in recent years, leading to record high utility shutoffs. And while investing in infrastructure stability is essential, this plan would force frontline communities to shoulder the economic and environmental burden of harmful fracked gas projects.

Con Ed is requesting $2.8 billion in gas system investments over the next three years. Half of 1.4 billion of that funding would go to fracked gas pipe replacement in conflict with the State's emissions reduction mandates under the CLCPA

Rather, Con Ed -- Con Ed's projections are based on projected current gas demand rather than the reduction in gas usage set forth by both the CLCPA's scoping plan that is needed to achieve the state's electrification and emissions reduction commitments.

Con Ed's proposal also fails to account for the end of the hundred-foot rule recently passed by the State legislature, which will sharply

curb new gas connections. By over projecting gas demand in their models based on now outdated rules, Con Ed is overstating the need for new gas infrastructure. Meanwhile, spending on lower cost pipeline alternatives remains negligible despite being proven solutions reducing the need for new gas infrastructure.

A fundamuntal -- a fundamental conflict exists between Con Ed's multi-billion dollar gas -- fossil gas investments and New York's decarbonization targets under the CLCPA. At the same time, severe and worsening energy and affordability crisis is straining vulnerable households, driven by proposed rate hikes and inadequate -- inadequate assistance programs.

We can achieve decarbonization in the CLCPA while ensuring affordability and equity by recalibrating future gas demand forecasts to reflect realistic customer acquisition trends under current conditions, lowering costs and reducing unnecessary -- unnecessary fracked gas infrastructure; prioritizing non-pipe alternatives such as target electrification that reduce the need

for new gas infrastructure and reduce the risk of stranded assets; piloting an affordable multifamily electrification program that offers bill credits to building owners who need financial help to convert to electric heating; and expanding low income energy assistance by enhancing the energy affordability program to include households earning up to the median income so all utility-burdened families can share in relief.

And for all these initiatives, customer engagement will be key. Con Edison should partner with community organizations to deliver messages deep into hard-to-reach neighborhoods. Likewise, materials must be available in several languages to reflect the diversity of our city.

Utilities have long relied on New Yorkers' utility bills to fund a fossil fuel-dependent grid. It's time for Con Edison to redirect investments toward electrification and pipeline alternatives, implement robust affordability safeguards, and overhaul load forecasting to ensure an equitable, climate-aligned energy transition for all New Yorkers. Thank you.

A.L.J. KERSEY: Thank you. Thank you for your comments. Our next speaker is Phil Vanaria.

MR. VANARIA: I'm sorry. I haven't prepared any statement, but so this is largely from the gut. I've been a lifelong resident of New York and a senior, 75. I have strong reservations about Con Edison. I've presented them numerous times when I've spoken before the Public Service Commission also.

I happen to be the first survivor on record, on public record at least, of stray voltage. I was electrocuted while using a payphone in the Greenwich Village where I live. In August of 1997, it short circuited when I happened to get on the phone. The site, I was stuck to the -- I thought I was having a heart attack on the phone, and then I put my hands on top of the post next to it to just steady myself with my eyes closed, gather my wits. It was an August day, very warm.

And I got stuck to the post. I thought I was -- I had a near-death experience. I thought I was being shot to pieces, blown up. My head came forward. I saw that my hands were stuck,

and I managed to -- I think the -- doctors told me that quite possibly the contractions were so fierce that they may have tossed me off. I also think I had some sort of extra help, you know, that kind of thing.

I managed to walk away from the incident and report it to the fire department nearby without giving any personal information. I just wanted to be sure no one else would have the same experience after me.

I went back to the site to make sure that they went to the right place, and the fire chief asked me to please let him put me in a -- in an ambulance, you know, because the effects could be delayed. I was relu -- I didn't do that, but he took my personal information then since I went back.

And it was all downhill after that. I just -- I was a teacher. I taught for many -- for a few -- two decades-plus whatever. And it turned out I had nerve damage. And worst of all, what I still live with day-to-day is a traumatic brain injury, which most people don't understand at all, including the medical and legal community.

I'm a big advocate for public safety and brain injury awareness. I can tell you what I speak to very much here is I know about Con Edison, and they're not genuine concern for the public. Their mission is to -- should be to serve the public in the most reliable ways. And I -- I just learned so much garbage about them.

For one thing, I had to go through a trial to get an award, and it was very painstaking. They work -- this is a key point. They work incredibly fiercely to make -- to keep their profits. They don't want to part with a penny if they can avoid it.

I was blasted with what happened to me. My body was exploded. The changes were significant and still are 28 years later. And -- and I saved their asses, excuse me, by walking away and preventing them from hurting someone else. They never said they were sorry. They never said thank you.

And so I know in -- in dealing with them, this is maybe what you will see, that they are not forthcoming. For one thing, my -- my incident

was judged to be like a freak accident because it was promoted -- it was reported in the -- on the -- throughout most of the United States, whatever, became one of those teacher gets shock of his life stories, whatever.

And as he said, I never heard anything from them. They -- the -- a woman was electrocuted six years after me, and it was acted as if that was the first time that incident happened. And be well in between, after my court case in September of 2000, I also made public statements, tried to make even more public statements. But the media is not so receptive unless they need you for a sound bite, which they all came after me for that, being the only survivor on record.

And then it wound up with my testimony, it was revealed that there were about 18 survivors, some of them that may have been even before me. I'm the first one on public record. So they're not forthcoming. So I would just say in terms of dealing with them, you know, that they're not -- they're not looking out for the public good.

They apologized profusely to the

woman -- the family of the woman who was killed after my incident. They gave her a tremendous award. And they -- those people deserve that. And I can't say I deserve better. As my legal representation said, you should -- you needed twice what you got.

But I'm just saying this, in other words, for you to understand the nature of Con Edison. They -- they need to maintain the infrastructure. That's part of the problem. That's what it comes down to. My situation happened because of poor maintenance. Sure. Because a lot of the money is going into, as someone previously said, a very high salary for the chief executives.

I have nothing against the rank-and-file workers. I trust -- I hope that they're doing a job with the best of intentions of providing the best services to the people of New York, but I don't -- the management really wants to hold on to their money. They make big profits.

They could -- they -- they should have been reinvesting money all these years to main -- to properly maintain the infrastructure. That's the root cause. We don't need the manhole explosions.

We don't need the steam pipe explosions. We don't need people being electrocuted by stray voltage or animals being -- that's almost like a regular event.

I'd like to know what the status is now, too, in terms of things like stray voltage. You don't read that, what the prospects. And because there were those other situations before me or at the same time as me, those were secret settlements so that people didn't know that this was happening, stray voltage incidents.

I want to know how much is being hidden now. I want to know how well Con Edison is taking care of the public, and not just on stray voltage, but in general. These blackouts when they say that they're not so prepared for the season that's going to put on an excessive demand.

The -- the rates are the highest or some of the highest in the United States, the electricity rates for Con Edison. And that's -- I agree with another previous speaker. We don't need to be taxed like this. They have more than enough money and they hold on to every penny.

We deserve a good infrastructure, and

we deserve reasonable rates. Nothing extra spectacular that just stuffs the pockets of Con Edison's management. Again, I really have high hopes for the work that we want them to do, the responsible work that they need to do, and I appreciate the service of electricity.

And I just think that they -- I don't think that they deserve stupendous rate increases. I really do think we deserve better services, too. I hope that I said -- what I said made sense coming out of my brain-injured mouth. But I wish -- wish us well. I really do hope that something sensible happens going forward. Thank you so much. I appreciate your attention.

A.L.J. KERSEY: Thank you for your comments. Our next speaker is Arthur Goodridge.

MR. GOODRIDGE: Yes. Thank you. On behalf of the folks of the court to coming. So let me ask you this. Why the fuck did we have to raise our electric rates? We had a brutal heat wave brought -- a couple weeks before the election.

And second of all, all of a sudden you have, like we deal with blackout, we deal a burnout,

and we deal with what else? You have, like, solarize our homes, make sure that we have (indiscernible). So why we keep going with this and that all summer?

It's like we (indiscernible) public to be common sense, not the other way around. This has to be -- be addressed to make sure the community must be fucking informed and make sure to realize that we need to be informated [sic].

The community must be sensitive and allow people to come home from work. They do take time for -- like, for passing by, like, people that call (indiscernible) people who struggle with, kind of like, now we deal with rent. All -- all the sudden you deal with -- the people that live poverty don't deal with the cost of living or the electric rates are called too high.

And now you have a solarize a home, make sure it'd be better to make sure we improve they selves so to make sure that guarantees are -- guaranteed to keep costs affordable for everybody, not just -- not to the rich, the filthy rich. Give it to all platforms, and then to make the rich pay the fucking price and pay their fair share. So -- so

this is my quote, my point of quote. So that's number one.

And number two, we need to make sure to be -- to invest in our future for our community. Like solar power, like rain, like windmill, and of course wind farm, that -- there's so many (indiscernible) people who live in asthma or people who have other fucking health conditions or something.

This has to be fucking done in those neighborhoods have been affected (indiscernible) fucking (indiscernible). That is so (indiscernible) urban decay. That is the number one solution that we need address (indiscernible) not to the (indiscernible) committee for all the people who don't speak English. That's the number one tool they need to have accountability for. So thank you for -- for that.

A.L.J. KERSEY: Thank you.

I don't have any more registered speakers. Does anyone else in the room wish to speak or be heard? Okay. We're going to go off the record then. We're going to keep the -- we'll reopen the

hearing in 15 minutes just to make sure there's no one else who comes in or wants to be heard.

If you are here and you do want to be heard, just fill out a form, a card with the folks, our OCS folks out in the lobby, and we'll be happy to add you to the list. Otherwise, we'll reconvene in 15 minutes. Thank you.

Off the record. Thank you.

(Off the record)

(On the record)

A.L.J. KERSEY: Okay. We are on the record. Mr. Vanaria, would you like to make a further comment?

MR. VANARIA: I just -- just wanted to note that something that I think most of us know in New York is that Con Edison is a monopoly. And I -- you know, politics, you know, there's a lot of political theater that happens all the time. But I -- it's worth remembering that when Andrew Cuomo was governor of the -- of New York, he -- there was a constant battle between -- seemed to be a constant battle between Con Edison and he and the Public Service Commission, and to the point where he said,

maybe we have to step in and take a look at alternatives to this monopoly.

I mean, he spoke very forcefully about possibly considering something different than Con Edison as being our source of energy and the people who should well maintain the infrastructure, which is really the basis of the problems, whether it's poorly maintained infrastructure for not decades, a century, more than a century.

Maybe it's worth a reconsideration of the idea of getting rid of this monopoly. I don't know how. I mean, I of all people couldn't solve that, you know, but there's plenty of people that don't have brain injuries.

And -- and again, I'm also going to say this, too, because it's not right for me to -- I might possibly be portraying brain injuries as forgetting (indiscernible). I know a lot of people almost think that a person has to be a vegetable or you think this person's a vegetable if they say they have a brain injury.

I had a very high IQ previous to my injury. That changed. But what I feel, how I

describe it, is that brain injuries are injuries of fragmentation. There's different levels. I have impairments. I still have some of the -- a lot of brilliance that I had previous to my injury, and there's probably a lot of brain-injured people that could even help this commission make a valid -- well, I've made a tremendous -- I have to say, I've made a tremendous contribution over all these years.

I am the one survivor it seems. The one survivor who has been able or willing to present the situation that I've had. And I know it's -- it's contributed to some positive effects. For one thing, the revelation that there were other people at the time that they were -- that I was allowed to look like I was a freak accident.

And then I spoke to someone upstate, an important legislator, and the questions got tougher for Congress. And there it was the admission came out that they had these other victims, and they were -- they were bound by secret settlements. I had to go through a whole case that was a public trial, whatever. So I'm not a secret settlement.

So there's a lot of -- there's a lot

that comes out and a lot came out by my own participation. I'm proud of that. And I'm proud of anyone else who has put their voice to try to help people in New York. I think that's very important.

I've always -- that was part of my life before my injury being I taught little kids, and it was so important to teach them values and role modeling. They were very important to me, and my work was important to me. And I think, right now, we really need role models like crazy.

So I'm glad to be here now to express those opinions to you too, and also to stand up to -- again for brain injury awareness. That's very, very important. There's more to it than meets the eye or whatever.

A.L.J. KERSEY: Thank you.

MR. VANARIA: Thank you so much.

A.L.J. KERSEY: Thank you.

MR. VANARIA: I really wish us a lot of luck with this. Con Edison should not get away with get -- with courting profits. I'm not saying profits are horrible, but there needs to be a balance definitely.

A.L.J. KERSEY: Thank you.

MR. VANARIA: Thank you so much.

A.L.J. KERSEY: Thank you.

MR. VANARIA: Appreciate it.

A.L.J. KERSEY: Thank you.

Is there anyone else who would like to make a comment this evening? Again, I want to remind you that you can submit comments regarding these proceedings by the other means described earlier even if you spoke today and must do so by November 21st, 2025 for those comments to be considered.

We have a few more public statement hearings. We have two going on in the Bronx tomorrow, two going on in Queens, and then also on July 22nd and 23rd at 6 p.m. those dates in Staten Island. I want to thank you for your participation today. This hearing is concluded, and we are off the record. Thank you and have a great evening.

(The hearing concluded at 6:45 p.m.)

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STATE OF NEW YORK

I, ILDIKO NYARI, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 25, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 12th day of July, 2025.

ILDIKO NYARI, Reporter